

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Christopher Anderson	Team: Squad #11	CCRB Case #: 201810038	☐ Force	☒ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Monday, 12/03/2018 6:30 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 1/18/2021	Precinct: 121		
Date/Time CV Reported Mon, 12/03/2018 1:04 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 12/03/2018 1:04 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Witness(es)	Home Address
§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Edgardo Diaz	09558	948883	WARRSEC
2. DT3 Tina Stuart	03291	927973	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. DT3 Genaro Barreiro	308	950050	WARRSEC
2. DT3 Darnell Forrester	6140	950431	060 DET

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Edgardo Diaz	Abuse: Detective Edgardo Diaz damaged § 87(2)(b)'s property.	A . Unsubstantiated
B . DT3 Tina Stuart	Abuse: Detective Tina Stuart entered § 87(2)(b) in Staten Island.	B . Unsubstantiated
C . DT3 Edgardo Diaz	Discourtesy: Detective Edgardo Diaz spoke discourteously to § 87(2)(b)	C . Unsubstantiated
D . DT3 Edgardo Diaz	Discourtesy: Detective Edgardo Diaz spoke discourteously to § 87(2)(b)	D . Unsubstantiated
E . DT3 Edgardo Diaz	Discourtesy: Detective Edgardo Diaz spoke discourteously to § 87(2)(b)	E . Unsubstantiated

Case Summary

On December 3, 2018, § 87(2)(b) filed this complaint on the CCRB website on behalf of herself, her daughter's father § 87(2)(b) and her attorney § 87(2)(b).

On December 3, 2018, at approximately 6:30 a.m., Det. Tina Stuart, Det. Edgardo Diaz, and Det. Genaro Barreiro, all from Warrants Section Staten Island, arrived at § 87(2)(b)'s home, located at § 87(2)(b) in Staten Island. Det. Diaz knocked on an exterior window, allegedly causing damage to it (**Allegation A: Abuse of Authority: Property damaged, unsubstantiated**). The officers spoke with § 87(2)(b) and then, due to Det. Stuart allegedly possessing a bench warrant for § 87(2)(b)'s arrest, entered the residence (**Allegation B: Abuse of Authority: Entry of Premises, unsubstantiated**).

While inside § 87(2)(b)'s home, officers spoke with her, and she placed a telephone call to § 87(2)(b) and her attorney, § 87(2)(b). During this call, Det. Diaz allegedly called § 87(2)(b) a "piece of shit" (**Allegation C: Discourtesy: Word, unsubstantiated**) and allegedly called § 87(2)(b) a "piece of shit" (**Allegation D: Discourtesy: Word, unsubstantiated**). After the conclusion of the call, Det. Diaz allegedly told § 87(2)(b) that § 87(2)(b) was a "piece of shit lawyer" (**Allegation E: Discourtesy: Word, unsubstantiated**).

§ 87(2)(b) was not arrested or issued any summonses as a result of this incident.

No video footage was obtained in this case.

Findings and Recommendations

Allegation (A) Abuse of Authority: Detective Edgardo Diaz damaged § 87(2)(b)'s property.

Allegation (B) Abuse of Authority: Detective Tina Stuart entered § 87(2)(b) in Staten Island NY.

It is undisputed that officers entered § 87(2)(b)'s home based on their assertion that Det. Stuart possessed a bench warrant for her arrest.

§ 87(2)(b) stated (Board Review 01) that at the start of the incident, she heard a "banging" sound on her apartment's entry door. She saw officers "bang" on exterior windows in the apartment kitchen and bathroom. When § 87(2)(b) later closed this window during the incident, the handle of it, a photograph of which § 87(2)(b) provided to the CCRB (Board Review 02), fell from the window, which § 87(2)(b) attributed to officer actions. § 87(2)(b) complained to the officers that they had broken her window. § 87(2)(b) initially spoke to the officers through a window and refused to comply with their request that she open the entry door. Officers began to gather tools, and she opened the entry door. § 87(2)(b) requested, multiple times, that officers not enter her apartment, but the officers did so.

Det. Diaz stated (Board Review 03) that after arriving at the exterior of § 87(2)(b)'s home, he saw her inside it through an exterior window of what he thought to be the kitchen, and he knocked on this window a "good amount of times." Det. Diaz did not see any damage to this window prior to or after his knocking on it, and it did not break or sustain any physical change as a result of his knocking on it. § 87(2)(b) did not complain to Det. Diaz, during or after the incident, of any damage the officers caused during the incident. After opening the apartment's entry door and speaking to Det. Stuart, § 87(2)(b) verbally invited the officers to enter her apartment, saying, "Come inside."

Det. Stuart stated (Board Review 04) that she had been investigating a case involving § 87(2)(b) and had an active bench warrant for her arrest. Det. Stuart saw § 87(2)(b) inside her residence from its exterior and, after speaking with § 87(2)(b) at the apartment's entry door, § 87(2)(b) opened this door and verbally invited the officers to enter. Det. Stuart subsequently entered because she had the bench warrant for § 87(2)(b)'s arrest and for no other reason. § 87(2)(b) stated that she was unable to make childcare arrangements for her daughter, and due to this and for no other reason, Det. Stuart instructed her to appear for court to vacate the warrant, and the officers left the location.

Det. Barreiro stated (Board Review 05) that at the time of his CCRB interview, the same bench warrant for § 87(2)(b) that the officers possessed during this incident was still active and that he had a digital copy of it on his Department-issue phone. Det. Barreiro agreed to provide this document to the CCRB but did not subsequently do so.

Attempts to obtain § 87(2)(b)'s bench warrant or evidence of its having been issued or executed were made by submitting requests to multiple outlets, including the NYPD's Department Advocate Office (DAO), the on-site CCRB-IAB Liaison Unit, and the NYPD's Warrants Section. In totality, these requests either returned negative results or duplicate copies of a Warrant Profile for § 87(2)(b) (Board Review 06). This Warrant Profile references the September 2018 arrest for which she was released on her own recognizance and had subsequent court dates. The most recent warrant listed for § 87(2)(b) was from January of 2018 and was listed with an "active" status as of October 10, 2019. No documents were successfully obtained that indicated whether this warrant was executed during this incident.

§ 87(2)(b)) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
§ 87(2)(g)
It is therefore recommended that **Allegation A** be **unsubstantiated**.

§ 87(2)(g)
It is therefore recommended that **Allegation B** be **unsubstantiated**.

Allegation (C) Discourtesy: Detective Edgardo Diaz spoke discourteously to § 87(2)(b)

Allegation (D) Discourtesy: Detective Edgardo Diaz spoke discourteously to § 87(2)(b)

Allegation (E) Discourtesy: Detective Edgardo Diaz spoke discourteously to § 87(2)(b)

It is undisputed that Det. Diaz spoke with § 87(2)(b) in a telephone call that § 87(2)(b) placed to him. Although § 87(2)(b) disputed (Board Review 08) that he spoke via telephone with any officers during this incident, given that both § 87(2)(b) and Det. Diaz corroborated that

Det. Diaz spoke with § 87(2)(b)'s attorney, who § 87(2)(b) identified as § 87(2)(b) via telephone, the investigation credits this interaction to have occurred.

§ 87(2)(b) stated that she placed a telephone call to § 87(2)(b) and § 87(2)(b) in a three-way call. Det. Diaz spoke with both § 87(2)(b) and § 87(2)(b) and called both of them a “piece of shit.” After this call was concluded, Det. Diaz told § 87(2)(b) that she had a “piece of shit lawyer.”

§ 87(2)(b) refused to provide a statement to the CCRB regarding this incident.

Det. Diaz denied calling § 87(2)(b) or § 87(2)(b) a “piece of shit,” denied telling § 87(2)(b) that § 87(2)(b) was a “piece of shit lawyer,” and denied using this term or any profanity whatsoever with § 87(2)(b). Both Det. Stuart and Det. Barreiro denied hearing Det. Diaz make such statements or use profanity during the incident.

§ 87(2)(g)

It is therefore recommended that **Allegations C, D, and E** be **unsubstantiated**.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 09).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 10).
- This is the first CCRB complaint to which § 87(2)(b) has been a party (Board Review 11).
- Det. Stuart has been a member-of-service for 18 years and has been a subject in 12 CCRB complaints and 24 allegations, none of which were substantiated. § 87(2)(g)
- Det. Diaz has been a member-of-service for nine years and has been a subject in six CCRB complaints and fifteen allegations, none of which were substantiated. § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint.
- As of September 5, 2019, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this complaint (Board Review 12).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: _____

Investigator: _____
Signature Print Title & Name Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date